Tentative Rulings
July 30, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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14. *Wissa v. Nguyen, et al.,* Case No. CIVSB2601308
Defendant Redlands Community Hospital's Demurrer
7/30/26, 9:00 a.m., S-17

Tentative Ruling

The Court would **OVERULE**.

Case Summary

This is a medical malpractice case. Plaintiff alleges that on March 8, 2015, he went to the emergency room at Redlands Community Hospital (Redlands) after experiencing abdominal pain. A CT scan was ordered and reviewed by Defendant Dr. Nguyen, and he concluded that Plaintiff was suffering from kidney stones and recommended fluids and a follow-up with his primary care physician. However, the CT scan also allegedly showed a growth on his right kidney, which was never disclosed to Plaintiff. Neither was the recommendation to undergo a CT urogram. (Compl. ¶¶ 11-13.) Plaintiff alleges this failure delayed the discovery of the concern and was, therefore, made worse and exacerbated by the lack of testing, monitoring, and treatment that, he asserts should have been recommended. Later that month, he was diagnosed with renal cancer. As such he filed this medical malpractice case on January 1, 2026, alleging negligence against each of the parties.

Analysis

Redlands now demurrers to the second cause of action for negligence (Count II). Redlands contends that the action is barred due to the statute of limitations for professional medical negligence.

The issue is the date the injury. Specifically, Redlands demurs on the basis that the date of injury was when Plaintiffs' physicians should have told him about the growth on his kidney and recommended a CT urogram in March 2015. Redlands argues that since it has been more than 10 years from that date, Plaintiff is barred by the statute of limitations under section 340.5. Plaintiff responds by asserting that the date of injury occurred in June 2025, when Plaintiff was diagnosed with renal cancer.

Under Section 340.5, "an action for injury or death against a health care provider based upon such person's alleged professional negligence" must be brought within "three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." "[T]he special statute of limitations for professional negligence actions against health care providers applies only to actions alleging injury suffered as a result of negligence in rendering the professional services that hospitals and others provide by virtue of being health care professionals: that is, the provision of medical care to patients." (*Flores v. Presbyterian Intercommunity Hosp.* (2016) 63 Cal.4th 75, 88.)

“The term ‘injury’ for purposes of section 340.5 ‘refer[s] to the damaging effect of the alleged wrongful act and not to the act itself.’” (*Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 779.) “An injury manifests when damage is ‘evidenced in some significant fashion; when the damage has clearly surfaced and is noticeable.’” (*Filosa, supra,* 59 Cal.App.5th p. 779 [internal citation omitted].)

The Plaintiff also cites and relies on *Steingart v. White* (1988) 198 Cal.App.3d 406, in which the plaintiff discovered a lump in her breast, which the defendant doctor diagnosed as a benign condition in February 1982. The *Steingart* court rejected the defendant’s argument that the plaintiff suffered an injury at the time the defendant examined her in 1982, instead concluding that – although the plaintiff knew about the lump at the time of the 1982 examination – “such a condition is not a clear indication of injury, either damaging effect or appreciable harm.” (*Steingart, supra,* 198 Cal.App.3d at pp. 414–415.) One Court has stated the proposition more clearly: “We accept the *Steingart* proposition that severe damage which does not show itself (hidden cancer, for instance) is not ‘injury’ until it is found by diagnosis.” (*Marriage & Family Center v. Superior Court* (1991) 228 Cal.App.3d 1647, 1654, modified (Apr. 25, 1991).)

Here, Plaintiff alleges sufficient facts that his injury did not manifest until his cancer diagnosis in June 2025. Plaintiff alleges that he went to Redlands’ emergency room in March 2015, after he had experienced abdominal pain and vomiting. Plaintiff was not informed of the growth on his kidney, nor was he informed of the recommendation that he should undergo a urogram. The complaint does not allege that Plaintiff had any other symptoms until more severe symptoms in June 2025. This triggered Plaintiff visiting another hospital, where he was diagnosed with renal cancer. A month later, Plaintiff found out that he had a growth on his kidney dating back to at least March 2015.

In this matter, Plaintiff alleges he had no other symptoms until 10 years later when he had bloody urine in June 2025. No other facts exist to show that Plaintiff had become aware of additional, appreciable harm. In the same month, Plaintiff sought medical care and was diagnosed with renal cancer. Plaintiff filed his complaint in January 2026, within six months of the date of injury. As such, Redlands statute of limitations argument is not demonstrated from the face of the complaint.

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15. *White v. General Motors, LLC, et al,* Case No. CIVSB2515608
Plaintiff's Motion for Attorneys' Fees
7/30/26, 10:00 a.m., Dept. S-17

Tentative Ruling

The Court would **AWARD** $21,070.00 in attorneys' fees, plus costs in the amount of $752.26.

Statement of Law

In general, attorneys' fees, costs, and expenses are recoverable under the Act, Civil Code section 1794, subdivision (d), which provides:

> If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

To prevail under the Act, the buyer must have recovered damages or other legal or equitable relief. (Civ. Code, § 1794(a).) The burden is on the party seeking attorney fees to prove the fees are reasonable. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.)

Analysis

Here, Plaintiff asserts attorneys' fees in the amount of $24,170.00 (per stated lodestar) and costs in the amount of $752.26. (Abraham Decl., ¶15 & Exh. 7.) Plaintiff, however, also seeks a 1.2x multiplier. (*Ibid.*) Thus, Plaintiff seeks $29,756.26 in total.

<u>*As to multiplier:*</u> The case does not warrant a multiplier. In this case, there is nothing novel about the legal or factual questions involved nor does the display of skills warrant a multiplier. While the case may have been taken on a contingency, that factor alone does not warrant a multiplier. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 40 [factors including (1) novelty and difficulty; (2) skill displayed; (3) extent to which litigation precluded other work; and (4) contingency nature].)

<u>*As to attorney rates:*</u> The rate used is high given rates in the geographic region. A rate of $575 per hour is more reasonable for an attorney Plaintiff's counsel's experience taking a lemon law case on a contingency basis in this locale. Otherwise, the $200 rate for the more generalized or clerical tasks seems reasonable.

<u>*As to fee reduction arguments:*</u> As for the reasonableness of the time expended, the motion is supported by billing records that largely itemize tasks into singular task-types or which include closely related activities. Most of the tasks were also only billed for fractions of an hour and those tasks that exceed an hour involve tasks that usually take longer, such as the initial disclosures, preparing for and attending mediation, or tasks or anticipated tasks related to the

fee motion. From a big-picture standpoint, the case has been pending for about 17 months. As a result, Plaintiff's counsel's firm only averaged around 2.36 hours a month (41.5 hours of attorney time claimed divided by 17 months). There is also no duplication of work given the single attorney working the case.

In the opposition, Defendant identifies nearly a dozen tasks that it contends were "clerical." While clerical staff could perform some of the tasks identified, e.g., drafting the summons, drafting the civil case cover sheet, etc., it would not be unreasonable for an attorney to draft those documents as well since they are filed with the Court, especially when, as is the case here, the attorney is already drafting the accompanying complaint. Other tasks highlighted by Defendant include some clerical-type work, but they are intertwined with higher-level work, e.g., organizing documents and the file, but also summarize and itemize their contents. Even the organization of the repair orders entails reviewing them and calculating how they should be organized for later use in the litigation. Overall, no reductions are warranted on this argument.

Defendant also contends that certain tasks billed are duplicate. However, revisiting documents to review them, such as for accuracy, before filing documents is not "duplicate" *per se* nor was it unreasonable for counsel to re-review documents to create a settlement calculation.

Overall, the time expended appears reasonable. Using the reduced rate, the loadstar amount would be $21,070 (calculated using 34.8 hours [the 40.1 hours claimed, minus the 5.3 hours billed at $200 per hour] multiplied by $575 per hour or $20,010, plus $1,060 [or the other 5.3 hours claimed at the $200 rate].)

<u>As to costs:</u> "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032, subd. (b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.

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16. *Avila v. California Premier Roofscapes, Inc., et al,* Case No. CIVSB2425309
Defendant Lennar's Motion for Summary Judgment or Summary Adjudication
7/30/26, 9:00 a.m., Dept. S-17

Tentative Rulings

<u>*As to Requests for Judicial Notice:*</u> The Court would **DENY** Lennar's request for judicial notice of the Complaint-in-Intervention as irrelevant and unnecessary.

<u>*As to Objections:*</u> The Court would **SUSTAIN** as to Lennar's evidentiary objections 1-6, 9, 20-27, 29-31, 33, and 36-27, but would **OVERRULE** the remainder. The Court would **OVERRULE** Plaintiff Avila's objection to Defendants Reply Separate Statement. Finally, the Court would **OVERRULE** Defendant Lennar's objection to Plaintiff's July 22, 2026, objection.

<u>*As to the Motion:*</u> The Court would **GRANT** the motion for summary judgment because under the *Privette* doctrine Defendant Lennar cannot be held liable for the injuries sustained by an employee of an independent contract, and Defendant did not retain control

Case Summary

This is a personal injury and premises liability case. In brief, on April 5, 2023, Plaintiff was at the Fairhaven construction project as an assembler for Sunland Scaffold, Inc. Plaintiff's pleadings asserts that Defendant Lennar Homes (Lennar) was the general contractor. (Compl., ¶11.) At approximately 2:00 p.m., while loading his truck, a roll of roofing paper being used by Defendant California Premier (Premier) was rolled off a second story roof and struck Plaintiff on the head. As such, on August 14, 2024, Plaintiff filed suit against all Defendants Premier Roofscapes, Inc. and Lennar alleging (1) negligence and (2) premise liability; dangerous condition. On July 18, 2025,LWP Claims Solutions filed a Complaint-in-Intervention as the at-issue workers' compensation carrier to allege parallel causes.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Now, Defendant Lennar argues that it cannot be liable for the injury to Plaintiff on two grounds: (1) no direct duty is owed because of the *Privette* doctrine and (2) there is no vicarious liability for Premier because it was not Lennar's agent. However, Plaintiff states that he is not pursuing a vicarious liability theory against Lennar. Its liability is argued to arise from its retaining control over the project site. (See Sep. Statement Undisputed Facts (UF), 21.) Further, the Complaint never pleads that Lennar is liable vicariously. Rather, the Complaint alleges Lennar is liable because it owned, maintained, controlled, entrusted, managed, and operated the property (¶¶13, 18, 20). Thus, Defendant's second argument is not considered.

Presented Facts – Plaintiff alleges that he was injured on April 5, 2023, while working as an assembler for Sunland Scaffold at the Fairhaven project when a roll of roofing paper being used by Premier rolled off the roof of a residential structure and struck him. (UF, 1 [undisputed].) When the accident occurred, Plaintiff was working in the course-and-scope of his employment for Sunland. (UF, 2 [undisputed].) Specifically, he was dismantling scaffolding at ground level, which included gathering the scaffolding components and loading them in a crew truck. Yellow tape was placed on the house door where he was working for safety. (Plaintiff's Additional Facts (AF), 5.) Defendant disputes, clarifying the house where Avila was working was not the house where the roofer was working. The scaffolding removal and the tape were placed on the property adjacent to the structure undergoing roofing work by Cal Prem. (Avila Depo. at pp. 102:16-103:2.)

Lennar is the builder and general contractor on the Fairhaven project residential community. (UF,7 [undisputed]; AF, 1.) Lennar hired Premier to complete the roof installation. (UF, 8 [undisputed].) It hired United Production Framing, LLC (UPF) to complete the wood framing. (UF, 9 [undisputed].) UPF hired Sunland as a subcontractor to install and remove scaffolds at the project. (UF, 10 [undisputed]; AF, 4.) Premier, UPF, and Sunland are separate entities from Lennar. (UF, 13 [undisputed].)

Lennar relies on the expertise of its subcontractors, including Premier and Sunland, to perform their respective contractual obligations safely and efficiently. (UF, 11.) It had no control over how the work was performed by Premier, UPF, or Sunland. (UF, 12.) Plaintiff disputes these facts because Lennar retained the authority to schedule the work at the project; it held safety inspections and meetings; and it had the authority to compel safe work conditions and stop a subcontractor's work if it was engaging in unsafe practices.

Lennar performed a safety inspection of the project about 2.5 or 3 hours before the incident. No objects or roofing material were observed falling off the roof. (UF, 17.) Plaintiff disputes any contention the inspection was adequate. Plaintiff contends Lennar never inspected to ensure the adequacy of the roofer's falling-object obligations. Lennar imposed no protection for unsecured rolls that were sitting on a second story roof.

Application of the Privette *Doctrine* – By presumption, when a person hires an independent contractor, he delegates to the contractor the responsibility to perform the work safely. (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 269.) Therefore, a "long-standing common law rule was that a hirer bore no liability for injuries caused by the negligence of the contractor." (*Ibid*.; *Privette v. Superior Court* (1993) 5 Cal.4th 689, 693.)

Under the above facts, Plaintiff was the employee of an independent contractor hired by UPF, a subcontractor hired by Lennar, to install scaffolding. Under the *Privette* doctrine, Lennar cannot be held liable for his injuries unless an exception exists. Plaintiff accepts that the *Privette* doctrine applies. However, Plaintiff argues the retained control exception applies.

An employee of an independent contractor may sue the hirer if he can show the hirer retained control, exercised that control, and affirmatively contributed to the employee's injuries. (*Hooker v. Dept. of Transportation* (2002) 27 Cal. 4th 198, 202, 213-214.) Retained control refers to the hirer having control or authority over the work entrusted to the independent contractor and its employees. (*Sandoval, supra,* 12 Cal.5th at p. 274.) To exercise control the hirer must have exerted influence over the work to the extent the independent contractor was not free to perform the work in the manner it sought fit. (*Id.* at p. 278.) Lastly, to affirmatively contribute to the injury means the exercise of the retained control by the hirer contributed to the injury that is not merely derivative of the independent contractor's contribution. (*Id.* at p. 277.)

Here, neither the roofing chain nor the framing or scaffold chain had any contractual relationship with, or authority over, the other. Each Master Trade Partner Agreement (Master Agreement) confines the subcontractor's authority to its own work. Each California Addendum to the Master Agreement confines the subcontractor to the responsibility for the means, methods, techniques, sequences, and procedures for its work. (AF, 6 [undisputed].)

Lennar, under the Master Agreement, retained site-wide safety authority. However, each subcontractor was to comply with all health and safety programs and rules. If Lennar determined that safety programs or rules were not being followed or implemented, it could stop the subcontractor's work, remedy the unsafe working condition, and assess a penalty. Thus, Lennar's onsite manager held the duty to ensure everyone was being safe. (AF, 7, 12, & 18.) It further retained the right to ensure each subcontractor's superintendent was satisfactory and one could not be changed without Lennar's approval. Also, Lennar could order the removal and replacement of one found unfit or unskilled. (AF, 8.) Furthermore, Lennar controlled the project schedule. It would give each trade its start date, and all trades were to work during their project schedule. (AF, 9.) Also, Lennar retained staging and delivery authority over the framing and scaffolding chain. No framing could be delivered to the job site without Lennar's consent. UPF could only store its material at approved locations. (AF, 10.)

By contrast, Premier trained its employees to stand rolls of roofing paper vertically on the roof, unsecured and with no equipment securing it. Its safety manager had no responsibility for prevention of falls or drops of material. He has used falling-object protection equipment in roofing work elsewhere. (AF, 20.) Defendant disputes this because Premier held the contractual duty to be responsible for workplace safety under the Master Agreement.

In construing these facts, they do not establish Lennar retained control over the manner and means of Premier's securing of equipment and supplies in relation its roofing work. Lennar schedules the work of the subcontractors at the project; engages in safety inspections; and holds the right to ensure safety compliance. These actions are not tantamount to, nor do they even imply, control over the manner and means that Premier employees did the work. More specifically, there is no control over who Premier employees stored, used, or staged roofing material. Even if Lennar had the right to stop work in relation to safety violations, no facts are offered that it actively engaged in that control, which then might have affirmatively contributed to the roofing material rolling off the roof.

Ultimately, the Master Agreement provides that the subcontractor shall "furnish all labor, equipment, supervision and all other things necessary to timely and properly perform the Work in accordance with the Work Agreement(s), PO(s) and Scheduling Notice(s) . . . ." (Def. Exh. 7 [¶2.1].) Furthermore, the subcontractor "shall maintain competent and sufficient supervision of employees on the Job Site during all times that the Subcontractor is performing its Work." (Def. Exh. 7 [¶7].) Finally, the Master Agreement states that the subcontractor "shall be **solely responsible** for ensuring that its Work and/or the delivery of Goods is performed in a safe manner." (Def. Exh. 7 [¶8.4].) Moreover, "[n]othing herein shall be deemed to be an exercise of control by Lennar of Subcontractor's safety obligations." (*Ibid.*) "Subcontractor shall take all reasonable and necessary safety precautions with regard to the Work and the delivery of Goods, shall coordinate its safety precautions with other subcontractors, sub-subcontractors, and suppliers, and shall comply with all safety requirements, laws, regulations, rules or ordinances of any authority (governmental or otherwise) responsible for the safety of persons or property." (Def. Exh. 7 [¶8.4].)

Under all facts and evidence, the safety obligation in performing one's work rested with the subcontractor, not Lennar. Nothing offered supports that Lennar retained such control as to negate the application of the *Privette* doctrine.

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17. *Aguirre v. Chaung,* Case No. CIVSB2516207
Defendant's Motion for Reconsideration of Sanctions
7/30/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY.**

This motion relates the Court's ruling on April 14, 2026, on Plaintiff's motion to compel further responses to Request for Production, Set Two (RFP2). The Court's tentative found the motion moot because supplemental responses had been served after the motion was filed. The tentative also found that by serving supplemental responses, Defendant conceded that the initial responses were insufficient. In the Court's ruling, it found that while the motion was moot, sanctions in the amount of $1,360 would be payable to Plaintiff in thirty days.

Now, although Defendant asserts he paid the sanctions, he seeks reconsideration pursuant to Section 1008(e) of the Code of Civil Procedure. Section 1008(e) provides relief upon submission of: (a) new or different facts, circumstances, or law; and (b) a declaration showing: (1) what application was made before, (2) when and to what judge; (3) what order or decisions were made; and (4) what new or different facts, circumstances, or law are claimed to be shown. Section 1008 is the exclusive means for modifying, amending, or revoking an order or for a renewal of a previous motion. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

Here, Defendant fails to raise new facts, circumstances, or law. In opposition to the underlying motion to compel, Defendant raised issues regarding the meet-and-confer efforts and also stated that he had voluntarily agreed to provide supplemental responses. He argued against the imposition of sanctions raising that he had voluntarily agreed to supplement responses to avoid the motion. Thus, the Court previously considered these arguments. Without any new fact, circumstance, or law, Defendant's motion must be denied.

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